

**CITY OF SOUTH MILWAUKEE PLAN COMMISSION
MEETING AGENDA**

Tuesday July 28, 2026 6:30 PM

Common Council Chambers, 2424 15th Avenue, South Milwaukee, WI.

1. Call meeting to order/roll call.
2. Approval of the May 26, 2026 meeting minutes.
3. Meeting 3, Discussion/possible consideration of an Ordinance to amend municipal zoning code chapter 15 regulations pertaining to:
 - a. §15.16 Lot and building regulations
 - b. §15.21 Signs
 - c. §15.22 Parking and loading areas
 - d. §15.23 Landscaping and screening
 - e. §15.26 Construction site erosion and sediment control
 - f. §15.27 Post-construction storm water management
 - g. §15.28 Definitions
4. Discussion/possible consideration of an Ordinance to impose zoning limitations on new tax-exempt uses within open Tax Incremental Financing Districts.
5. Economic Development Staff Quarterly Report, updating on Bucyrus grants, businesses, commercial vacancies, development projects, and plan commission activities.
6. Schedule next meeting (August 25, 2026).
7. Adjourn.

Posted: 7/24/2026

PUBLIC NOTICE

PLEASE NOTE: There is the potential that a quorum of the Common Council may be present at this meeting. Upon reasonable notice, a good faith effort will be made to accommodate the needs of disabled individuals through sign language, interpreters or other auxiliary aid at no cost to the individual to participate in public meetings. Due to the difficulty in finding interpreters, requests should be made as far in advance as possible, preferably a minimum of 48 hours. For additional information or to request this service, contact the South Milwaukee City Clerk at 762-2222, (FAX) 762-3272, or write to the ADA Coordinator, City Hall, 2424 15th Avenue, South Milwaukee, Wisconsin 53172. The City of South Milwaukee is TDD equipped and can be accessed by calling 768-8060

CITY OF SOUTH MILWAUKEE PLAN COMMISSION
MEETING MINUTES
May 26, 2026

1. Call meeting to order/roll call.

The meeting was called to order at 6:30 p.m. by Mayor Brett Briesemeister. Members present: Patrick Brever, Chris Haslam, Nick Gates, Ald. David Bartoshevich, Ald. Michal Olechowski, and Kevin Worm.

Also present Economic Development Manager Ericka Lang, City Administrator Travis Wells and City Engineer Genevieve Stollenwerk.

2. Public Hearing Item #6: Proposed amendments to various sections of Chapter 15 Zoning Code: 15.16 building height regulations and accessory building setbacks; 15.21 business signage; 15.22 driveways and parking improvements; and various amendments to provide clarity and align with other preempting regulations; and 15.26 Construction Site Erosion and Sediment Control and 15.27 Post Construction Stormwater Management to Municipal.

Mayor Briesemeister opened the public hearing at 6:32 pm, reading the public hearing notice and asking three times if anyone would like to speak. Staff confirmed no comments were received. At 6:33 pm Gates moved to close the public hearing, seconded by Haslam. Vote unanimous.

3. Approval of the March 24, 2026 meeting minutes.

Haslam motioned to approve the minutes, seconded by Gates. All in favor.

4. Consideration of Bucyrus Storefront Activation Grant for an interior renovation and ADA restroom at storefront space 1233 Milwaukee Avenue.

Lang introduced the item. The property owner and business owner Obed Pena is renovating the east side commercial storefront space at 1233 Milwaukee Avenue to relocate NOS Healthcare, a homecare agency, currently located in an office suite in South Milwaukee. Pena recently purchased the business. The space has been vacant since July 2025 and does not meet current building codes. He applied for the Storefront Activation grant for permanent building improvements including an ADA bathroom, requesting \$20,000. Project costs are estimated at \$110,000.

Obed Pena stated they currently have 80 patients and half in South Milwaukee and they need a bigger space as the company is growing.

Gates motioned to approve Bucyrus Storefront Activation grant for \$20,000 not to exceed 50% of eligible costs, seconded by Olechowski. Vote unanimous.

5. Consideration of Bucyrus Storefront Activation Grant for an ADA restroom at storefront space 910 Milwaukee Avenue.

Lang reviewed the interior grant request for an ADA compliant accessible bathroom. The property owner was approved for the same project May 2025 and did not move forward with it. A lease is currently signed for a brow personal service business. Tommi Ali was present, who is the preferred contractor for the project.

Breuer motioned to approve the Bucyrus Storefront Activation grant for \$12,500 not to exceed 50% of eligible costs, seconded by Olechowski. Vote unanimous.

6. Meeting 2, Discussion/possible consideration of municipal zoning code amendments for regulations pertaining to:

- a. Driveways and parking slabs**
- b. Lot and building regulations for height and setbacks**
- c. Landscaping and Screening**
- d. Signage**
- e. Stormwater Management**

Lang reviewed changes to driveway code language, building heights, accessory structure setbacks, landscaping and screening, and signage. Sam Schultz, zoning consultant from Von Briesen who completed the zoning rewrite in 2025, joined the discussion.

Discussion of detached garage setbacks when the garage door opens to an alley:

- The previous code required 10-feet that is not in the current code. Staff showed a dozen comparable city codes showing 5-feet as the most common setback. Lang and Stollenwerk recommended 5-feet. Increasing the distance from the alley decreases rear yard area.
- Schultz noted if a medium distance, then parking along the yolk may obstruct through traffic and hard turning radius in/out of garage. A short 3-foot setback would prohibit parking along the yolk.
- Olechowski inquired about cars passing in the alley. The previous zoning code had 10-feet for turning radius. Stollenwerk added 5-feet is typical. The city has 14-ft wide alleys and 5-feet each side gives 24' which is typical 2-way lane widths.
- Worm prefers less distance from the alley to eliminate parking vehicles along the door.
- Mayor Briesemeister commented that turning is tight and supports 10-feet, acknowledging older subdivisions had garages close to alleys.
- Breuer stated 8-feet is appropriate.
- Haslam stated that given the city is mostly built out, the impact of this code is low.
- Commissioners came to a consensus to add eight feet accessory structure setback from alleys if the garage door opens to the alley.

Discussion of accessory structure heights:

- Lang stated the revised code keeps accessory structure maximum heights the same, not to exceed the height of the principal structure, adding new language that structures can be taller if there is a grade change and the house is elevated.
- Briesemeister suggests adding height exception language for Accessory Dwelling Units above detached garages, as seen in other cities, permitting them taller than a one-story house. Schultz will research.

Discussion of accessory structure setbacks for corner properties:

- Lang stated that the current accessory structure corner street side setback requirement is impractical, requiring excessive setback distances for corner properties. Staff looked at changing it to the same as principal building, but not closer to side street than any existing principal building.

- Commissioners discussed whether the code should allow an accessory structure closer to the street than the house or adjacent house in the side yard. Lang will provide further review of corner lots.

Discussion of principal building heights:

- Lang noted there was no changes since the previous meeting draft, reminding that the current code is not easily calculated.
- Schultz prepared the revisions and noted that accounting for the width of the public right-of-way was complicated. In response to comments about concerns of too tall buildings, he added that building codes drive how high buildings are when factoring in fire regulations.
- Olechowski questioned if the draft changes simplify understanding permitted heights.

Lang stated that no changes were made to the sign code draft from the previous meeting. Commissioners supported limiting flag pole heights and simplifying how strip mall wall signage is calculated.

Stollenwerk stated that the storm water chapter in the municipal code was recently updated and the post construction and site erosion language in the zoning chapter were added to that chapter. The ordinance to amend the zoning chapter will include deleting both the §15.26 and §15.27 sections.

7. Update on Scott Crawford Bucyrus Campus development project at 1100 Milwaukee Ave and 1022 Milwaukee Ave.

Lang reviewed changes in parking supply. The total supply was reduced to 174, not including 50 allocated spaces on the adjacent parcel to the north. Reviewing the parking code adopted after the PDD was approved in 2024, 170 spaces would be the minimum number required.

Commissioners feel the current 174 parking spaces plus 50 spaces on the adjacent property made available through an easement, is appropriate for the project. Brever agreed.

Briesemeister noted the newly divided lots do not have singular uses that are active concurrently.

Stollenwerk reviewed the Traffic Impact Analysis (TIA), showing the approved temporary circulation for the school in the Corporate building. This circulation will not work when the project is complete. The TIA also recommends shifting the 10th Avenue south entrance northward so it is mid-block between Monroe Ave and Minnesota Ave, which is on the adjacent property that has various parking and access easements that would have to be revised.

Haslam inquired about the number of vehicles dropping off and picking up at the school. Stollenwerk noted the private elementary school does not have bussing with a potential attendance of 200 students. Currently the school is using four lanes down the center of the 10th Ave parking lot. Most of the traffic are right turns into the lot and does not impact traffic.

Lang reviewed landscaping and lighting, with minor changes and information needed.

Briesemeister suggested and commissioners agreed the final landscape and lighting plans may be approved by staff and does not need to come back to the Plan Commission for final approval.

Developer Que El-Amin of Scott Crawford, Inc. was present with Mohamad Khalek of Khalek Builders. They are not opposed to relocating the 10th Avenue driveway, but it is not on their property.

Breuer stated that the final solution of the traffic circulation for the school needs to come back to the Plan Commission.

8. Schedule next meeting. (June 23, 2026 at 6:30 pm)

9. Adjourn.

Gates motioned to adjourn the meeting at 8:14 p.m., seconded by Breuer.
Vote unanimous.



ECONOMIC DEVELOPMENT DEPARTMENT MEMO

Date: **July 24, 2026**

To: **Plan Commission**

From: Economic Development Manager Ericka Lang, City Engineer Genevieve Stollenwerk and Building Inspector Steve Petery, Consultant Sam Schultz

Meeting Date: **July 28, 2026**

Subject: **Proposed Zoning Chapter Amendments, Meeting 3**

A. Background/Rationale

Last year the zoning code was completely rewritten. During the rewrite process, many items were thoroughly discussed and evaluated and others were reviewed at a higher level. As staff utilizes the code, some areas require further review.

B. Key Issues for Discussion

1. Building heights

Proposed revisions improve administration and usability, simplifying right-of-way widths and setback considerations. Plan commissioners supported the draft language and no changes were made.

2. Accessory structure setbacks

Setback requirements for accessory structures on corner lots are not easily understood and are limiting for many corner lot configurations.

Changes were made from the previous draft. Staff proposes that on corner lots, a garage may be closer to the street than the house in the street side yard if it meets minimum principal setbacks and the adjacent property's rear yard abuts the rear yard of the said property. If the adjacent property abuts along its side yard, then it has to be set back either the code requirement or the adjacent house, whichever is greater.

Staff prepared aerial examples of the new code to illustrate how the proposed code is applied.

3. Accessory structure heights

Accessory structure heights were limited to the principal building height and 24-feet max. The code did not factor in grade variations and was not fully aligned with the Comprehensive Plan and city goals to support incremental density increases, such as Accessory Dwelling Units.

Staff proposes an accessory structure can be taller than the house, with two options:

- (a) The accessory structure is located at a lower elevation, provided the highest roof point of the accessory structure does not exceed the highest roof point of the principal building as viewed from the public right-of-way; or
- (b) The accessory structure does not contain more than two stories, the eave height does not exceed 17 feet, and the roof pitch matches the principal building.

Plan commissioners supported recognizing grade differences and requested further review for supporting Accessory Dwelling Units, that are limited above a detached garage if the principal structure. The above (b) addresses those comments.

4. Driveways and parking slabs

Driveway language is located in the zoning chapter and in chapter 23 Public Peace and Safety. Most of section 23.15 is relocating to the zoning chapter and revised to allow parking pads in side yards or rear yards alongside a garage. Illustrations were also added.

Plan commissioners agreed improved parking pads should not be in front yards and restricted to allow one additional vehicle.

The ordinance mentions changes to Chapter 23, but the ordinance does not repeal it. A separate ordinance will be considered by the council to revise §23.15.

5. Signage

The revisions address wall sign sizes on multi-tenant buildings/strip malls, simplifying staff review time and general usability. A flagpole maximum height was also added. Both changes were supported by plan commissioners and no changes were made.

6. Landscaping and screening

Two simple revisions are proposed, lowering required percentage of native plantings in commercial landscape beds from 100% to 50% and revising allowed fence materials for one-two-family uses, increasing choices. Plan commissioners supported changes and no changes were made.

7. Pre- and Post Construction Stormwater

Two zoning subsections 15.26 and 15.27 were recently added to Chapter 34 Storm water including related definitions. The proposed ordinance repeals the zoning section language, removing duplications.

8. Tax Exempt uses

There is a separate ordinance to add language to 15.18 Interpretation of Use Table to address tax exempt uses in active TIDs. The council is holding a public hearing.

C. Fiscal Impact

There may be minor costs associated with consulting assistance on sections of the zoning amendment. The majority of changes were completed by staff.

D. Requested Action

FOR ZONING AMENDMENTS ON PREVIOUS AGENDAS

Motion to recommend that the Common Council adopt an ordinance amending sections of Chapter 15, Zoning Regulations, relating to lot and building setbacks and heights, driveways and improved parking spaces, landscaping and screening, signage, stormwater management, and other miscellaneous text amendments for code clarification, as shown in Exhibit A.

FOR NEW TAX EXEMPT USE AMENDMENT

Motion to recommend that the Common Council adopt an ordinance amending Chapter 15 Zoning Section 15.18 imposing new tax exempt uses within open tax incremental financing districts.

E. Attachments

- Ordinance draft Chapter 15 amendments
- Aerial illustration of proposed corner street side yard accessory structure setbacks
- Exhibit A code markup Chapter 15
- Exhibit B code markup Chapter 23
- Ordinance for tax exempt uses within TIDs

Ordinance No. _____**AN ORDINANCE TO AMEND CHAPTER 15 ZONING OF THE CODE OF ORDINANCES RELATING TO DISTRICTS, SITE DESIGN STANDARDS, AND DEFINITIONS**

WHEREAS, the Common Council repealed and replaced Municipal Code Chapter 15 Zoning on May 6, 2025 by Ordinance No. 2277, and;

WHEREAS, the Common Council amended Municipal Code Chapter 15 Zoning sections relating to fences, vision triangle, temporary signage and signage in the public way on August 5, 2025 by Ordinance No. 2283, and;

WHEREAS, the Common Council adopted updated storm water management and erosion control regulations within Chapter 34 of the Municipal Code, duplicating Chapter 15 Zoning section §15.26 Construction Site Erosion and Sediment Control and section §15.27 Post-Construction Stormwater Management on April 21, 2026; and

WHEREAS, the proposed zoning amendments are consistent with the Comprehensive Plan 2050, enhance clarity and accessibility of the Zoning Code for the general public, and promote a balanced approach to preserving property values and neighborhood character; and

WHEREAS, after Plan Commission meetings held on March 24, 2026 and May 26, 2026, a public hearing held on May 26, 2026, and consideration and review at a meeting of the Plan Commission on July 28, 2026, duly noticed and published by law, a quorum being present and a majority of the commission voting therefore, the Plan Commission recommended the Council amend various sections of Chapter 15 of the Zoning code and Chapter 23.

WHEREAS, the Common Council finds that the modifications of Chapter 15 of the Municipal Code of Ordinances are necessary and that the regulations herein provided are enacted.

NOW, THEREFORE, the Common Council of the City of South Milwaukee does ordain as follows:

Section 1. The City hereby amends and repeals various sections of Chapter 15 Zoning of the municipal code describing all zoning chapter changes in Exhibit A, showing additions in underline and deletions in strikethrough. Exhibit B identifies revisions to Chapter 23, Public Peace and Safety, Section 15. The provisions referenced therein are relocated and amended within Chapter 15, Zoning, and shall be acted upon through a separate ordinance.

Section 2. The City hereby amends Chapter 15 Zoning Article II Districts, **Section 15.16 Lots and building regulations**

§15.16A Table II-2 shall read as follows:

Table II-2: Lot and Building Regulations						
	Z-1	Z-2	Z-3	Z-4	M-1	PDD
Lot Occupation						
Lot Width (feet)	Not applicable	60 min. 110 max.	30 min. 90 max.	180 max.	900 max.	Established during district adoption
Maximum Impervious Coverage	Not applicable	50	60	90	90	
40% Maximum front yard impervious coverage for 1- and 2-family residential dwellings						

(%)						
Setbacks — Principal Building						
Street Setback (Principal) (feet)	Regulation s of most restrictive abutting district	24 min.	6 min. 18 max.	2 min. 12 max.	24 min.	Established during district adoption
Street Setback (Secondary) (feet)		8 min.	6 min. 18 max.	2 min. 12 max.	12 min.	
Side Setback (feet)		8 min.	3 min. Arterial streets: 0	0 min. 24 max.	12 min.	
Rear Setback (feet)		8 min.	3 min.	3 min.	12 min.	
Minimum Frontage Buildout (%)		40	60	80	40	
Setbacks — Accessory Building						
Street Setback (principal)(feet)	Regulations of most restrictive abutting district	20 min. + principal building setback	20 min. + principal building setback	40 max. from rear property line	20 min. + principal building setback	Established during district adoption
Street Setback (Secondary) (feet)	Regulations of most restrictive abutting district	On corner lots accessory buildings and structures shall be set back from the street side lot line not less than the minimum principal secondary street setback requirement. Where the rear lot line of the corner lot abuts the side lot line of an adjacent lot, accessory buildings and structures shall be set back from the side street lot line not less than the front setback of any building situated on the adjacent lot and not less than the minimum principal secondary street setback requirement, whichever is greater.				
Side Setback (feet)	Regulations of most restrictive abutting district	6	3	3	6	
Rear Setback (feet)	Regulations of most restrictive abutting district	6	3	3	6	

§15.16B shall read as follows:

Contextual street-yard building setbacks. If a primary structure exists on any immediately adjacent parcel, not including parcels separated by a public right-of-way, the street-yard setback for the subject parcel for the principal building shall be the average of the minimum street-yard setback of the subject zone and the setback of the adjacent primary

structure(s). In no circumstance shall the street-yard setback exceed the maximum street-yard setback of the subject zone.

§15.16C shall be added and read as follows:

C. Accessory buildings.

- (1) Accessory buildings must be separated by a minimum distance of 10 feet from the principal building on the lot, and may be reduced with fire-rated construction.
- (2) Accessory building setbacks from the rear lot shall not be less than 8 feet when adjacent to an alley that have an opening directly on an alley.

§15.16D shall be amended and read as follows:

- D. Setback encroachments. Open or enclosed fire escapes, terraces, and unenclosed stairways may project into a side or rear yard not more than four feet; provided that they are not closer than three feet to any lot line.
- E. Height regulations. The City limits building heights to the maximum principal building height listed in Table II-3 based on the right-of-way type adjacent to the subject property. When the subject property abuts multiple different right-of-way types, the greatest maximum principal building height shall control.

Table II-3: Height Regulations

Right-of-Way Type	Maximum Principal Building Height (feet)
Major Arterial	120
Minor Arterial	120
Collector	80
Local	66
Alleys, pedestrian connections, and multi-use pathways	24

Figure II-1: Height Regulation Diagram

[Provided by City]

- (1) Accessory building height limitations. No property owner may build an accessory building that exceeds the height of the existing principal building, or 24 feet, whichever is less. A detached accessory structures may exceed the measured height of the principal structure when at least one of the following applies:
 - (a) The accessory structure is located at a lower elevation, provided the highest roof point of the accessory structure does not exceed the highest roof point of the principal building as viewed from the public right-of-way; or

- (b) The accessory structure does not contain more than two stories, the eave height does not exceed 17 feet, and the roof pitch matches the principal building.
- (2) Contextual building heights. If principal building abuts the subject property on any immediately adjacent property, not including properties separated by a right-of-way, the maximum principal building height shall not exceed the multipliers within Table II-4.
- (3) Calculating building heights. Suppose a subject property lies along a minor arterial street, and a principal building exists on an adjacent property within a Z-4 district that is 24 feet tall.
 - (a) Example 1: Basic Calculation. The maximum principal building height for the subject property is 96 feet ($24 \times 4.0 = 96$ feet), because the Z-4 contextual building height multiplier from Table II-4 reduces the subject property's allowable principal building height to a value less than the Right-of-Way Type limits from Table II-3.
 - (b) Example 2: Different Adjacent Zone. If the same 24-foot principal building exists on an adjacent property within a Z-2 *district*, the maximum principal building height for the subject property is 36 feet ($24 \times 1.5 = 36$ feet), because the Z-2 contextual building height multiplier from Table II-4 reduces the subject property's allowable principal building height to a value less than the Right-of-Way Type limits from Table II-3.
 - (c) Example 3: Different Right-of-Way Type. If the subject property lies along a *collector street*, the maximum principal building height is 80 feet, because the Right-of-Way Type from Table II-3 limits the maximum principal building height to a value less than the Contextual Building Height Limit in Table II-4.

Table II-4: Contextual Building Height Limits	
Adjacent Zone	Increase Above Structure on Adjacent Parcel
Z-1	No limit
Z-2	1.50x
Z-3	2.0x
Z-4	4.0x
M-1	No limit

- (4) Measuring Height. The City measures height as the vertical distance from the average ground elevation along the structure's base to the highest point of the subject structure. The average ground elevation is the midpoint between the highest and lowest ground elevations along the exterior building wall.

Section 3.

The City hereby amends Chapter 15 Zoning Article IV Site Design Standards **Section 15.21 Signs**

§15.21C(8) to read as follows:

Flags, up to a maximum of three per lot or parcel. The length of the hoist side of any flag shall not exceed 20% of the vertical height of the pole. Maximum height 35 feet. Property owners must fly U.S. flags in accordance with protocol established by the U.S. Congress. The City considers any flag that does not meet these requirements a sign subject to the requirements of this chapter.

§15.21H Table IV-1 Sign Regulations to read as follows:

Table IV-1 Sign Regulations				
Sign Type	Number Allowed	Sign Area (Maximum)	Sign Height (Maximum, feet)	Where Allowed
Ground	1 per street yard	1 square foot per linear foot of lot frontage	10	Street yard
Wall	No maximum so long as the total square feet of signage per storefront facade does not exceed 1 square foot per linear foot of tenant building facade		N/A	Street-facing building facade
Projecting	1 per business	12 square feet	N/A	Within 6 feet of entrance
Wayfinding	No limit	6 square feet	5	No limit
Sandwich Board	1 per building, business, or tenant space as applicable	12 square feet	4	Street yard or public sidewalk within 10 feet of business entrance

§15.21 to read as follows:

J. Sign location

- (1) Signable area. The signable area of a building is designated as the area of the facade of the building up to the roof line which is free of windows and doors or major architectural detail on which signs may be displayed.

Section 4. The City hereby amends Chapter 15 Zoning Article IV Site Design Standards **Section 15.22** Parking and Loading Areas

§15.22G to read as follows:

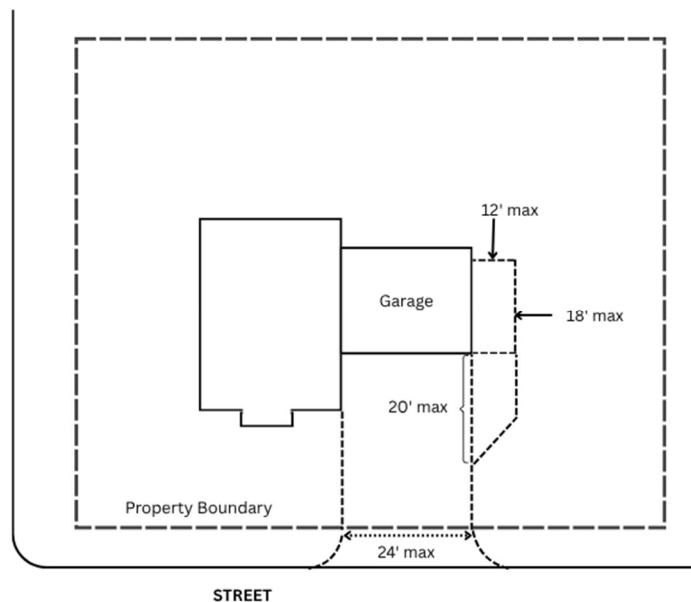
Use of motor vehicle parking areas. Property owners may only park licensed, operable motor vehicles in outdoor off-street motor vehicle parking spaces with the exception of typical vehicle maintenance, not to exceed 24 hours. They may not work on any motor in any outdoor motor vehicle parking space. They may not use any motor vehicle parking spaces for storing, displaying, or selling any goods or materials unless specifically approved by the Zoning Administrator.

§15.22I(6) and (7) shall be added to read as follows, reformatting (7) through (11) to ((8) through (12) and adding graphic figures:

(6) Driveways

- (a) Driveway width. The maximum width of driveways at the point of connection to the right of way is 24 feet for two-way travel and 12 feet for one-way travel. A three-foot taper is permitted to either side of the driveway approach in the public way.
 - i. For R-1 uses, driveways shall not exceed 24 feet in width at the property line.
 - ii. Driveways shall be the width of the garage, as measured from the garage door(s) plus an additional three (3) feet on either side of the garage door(s).
 - iii. Driveways may exceed 24 feet in width only for the minimum distance necessary to align with the width of the garage door opening(s), approved by the City Engineer.
 - A. The maximum length of a driveway width extension shall be 20 feet from the garage doors.
 - B. The driveway width extension shall taper, within 10 feet, back to the maximum driveway width.

Figure IV-1. Driveway Extension

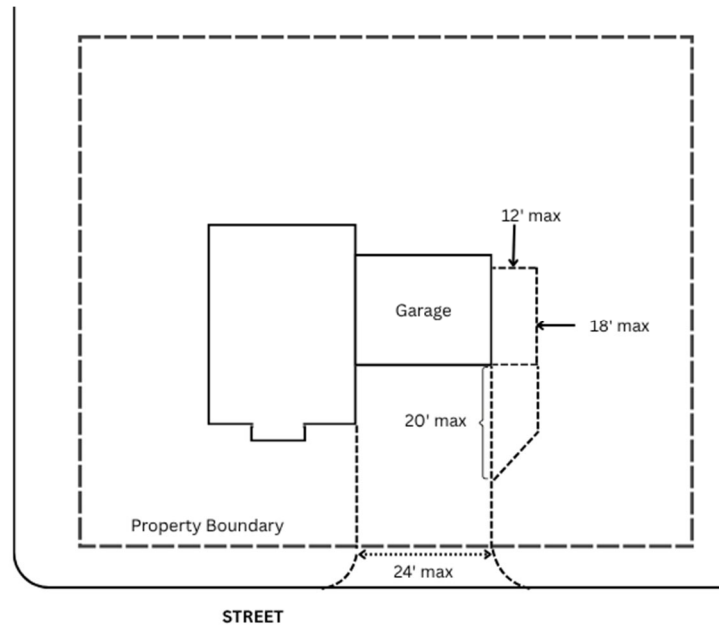


(7) Improved parking spaces.

- (a) In addition to an allowable driveway of one- or two-family dwellings:
 - i. One (1) uncovered parking space is permitted alongside an attached or detached garage and not located between the building and front lot line. For a corner lot, an uncovered parking space located in any yard area that abuts a street requires screening.
 - ii. The size of an uncovered parking space alongside a garage shall not be less than eight (8) feet or exceed 12 feet in width and 18 feet in depth.

The portion of the parking pad adjacent to the driveway extension shall have a maximum length of 20 feet, as measured from the front façade line of the garage. A minimum seven (7) foot taper shall be included in the 20-foot maximum.

Figure IV-2 Improved Parking Pad



Section 5. The City hereby amends Chapter 15 Zoning Article IV Site Design Standards **Section 15.23 Landscaping and Screening**

§15.23 A(8)(a) to read as follows:

Landscaped areas. Property owners must plant 50% of landscaped areas with the plants listed under Subsection A(8)(m).

§15.23 B(3)(a) to read as follows:

Required materials. Property owners may construct screening structures of masonry, stone, metal, wood, or gabions filled with stone material. The Zoning Administrator may approve the use of alternative materials provided that the materials are equivalent in suitability, strength, and durability.

15.23 B(3)(a) to add subsections to read as follows and to reformat [1] through [3] to [3] through [5]

- [1] R-1 uses may use vinyl and composite material. Chain-link material allowed in rear yards only.
- [2] R-2 and R-3 uses may use vinyl, composite and chain-link in rear yards only.

Section 6. The City hereby repeals **Section 15.26**, Construction Site Erosion and Sediment Control of Chapter 15 Zoning Article IV Site Design Standards that was relocated to Chapter 34 Article II.

Section 7. The City hereby repeals **Section 15.27**, Post-Construction Storm Water Management

of Chapter 15 Zoning Article IV Site Design Standards that was relocated to Chapter 34 Article III.

Section 8. The City hereby adds and amends the following terms from **Section 15.28** Chapter 15 Zoning Article V Definitions

IMPROVED PARKING AREA -- That portion of a front or side yard which is paved with asphalt, concrete or stone and devoted to a driveway, and that portion of a rear yard which has been improved for parking purposes by paving with stone, asphalt or concrete.

VEHICULAR USE AREA — A vehicular use area is an outdoor area on a lot used for the storage and operation of motor vehicles, including parking lots, vehicle storage areas, vehicle display areas, loading areas, driveways, and drive-through lanes.

Section 9. The City hereby repeals the following terms from **Section 15.28** Chapter 15 Zoning Article V Definitions that are duplicated, superseded, or otherwise addressed within Chapter 34 Storm Water.

ADEQUATE SOD or SELF-SUSTAINING VEGETATIVE COVER
ADMINISTERING AUTHORITY
AGRICULTURAL FACILITIES AND PRACTICES
ATLAS
AVERAGE ANNUAL RAINFALL
BMP (BEST MANAGEMENT PRACTICE)
CEASE AND DESIST ORDER
COMBINED SEWER SYSTEM
CONNECTED IMPERVIOUSNESS
CONSTRUCTION SITE
DESIGN STORM
DIRECT CONDUITS TO GROUNDWATER
DRAINAGE SYSTEM
EFFECTIVE INFILTRATION AREA
EROSION
EROSION AND SEDIMENT CONTROL PLAN
EXCEPTIONAL RESOURCE WATERS
FILTERING LAYER
FINAL STABILIZATION
FINANCIAL GUARANTEE
INFILTRATION
INFILTRATION SYSTEM
LAND-DISTURBING CONSTRUCTION ACTIVITY
LANDOWNER
MAXIMUM EXTENT PRACTICABLE
NRCS MSE3 OR MSE4 DISTRIBUTION
POLLUTANT
POLLUTION
PREVENTIVE ACTION LIMIT
RUNOFF
SEDIMENT
SEPARATE STORM SEWER
STORMWATER MANAGEMENT PLAN

STORMWATER MANAGEMENT SYSTEM PLAN
TOP OF THE CHANNEL
TOTAL MAXIMUM DAILY LOAD or TMDL
TP-40
TR-55
TSS
TYPE II DISTRIBUTION

Section 10: If any section, clause, provision, or portion of this ordinance is adjudged unconstitutional or invalid by a court of competent jurisdiction, the remainder shall not be affected thereby.

Section 11. This ordinance shall take effect and be in force from and after its passage and publication.

APPROVED AND ADOPTED by the Common Council of the City of South Milwaukee, Milwaukee County, Wisconsin, the _____ day of _____ 2026.

Mayor Brett Briesmeister

Attest:

Adopted: _____
Published: _____

Clerk Steven Braatz, Jr.

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

Section 15.16. Lot and building regulations of Article II Districts

A. Lot and building regulations

Table II-2: Lot and Building Regulations						
	Z-1	Z-2	Z-3	Z-4	M-1	PDD
Lot Occupation						
Lot Width (feet)	Not applicable	60 min. 110 max.	30 min. 90 max.	180 max.	900 max.	Established during district adoption
Maximum Impervious Coverage (%)	Not applicable	50	60	90	90	
40% Maximum front yard impervious coverage for 1- and 2-family residential dwellings						
Setbacks — Principal Building						
Street Setback (Principal) (feet)	Regulations of most restrictive abutting district	24 min.	6 min. 18 max.	2 min. 12 max.	24 min.	Established during district adoption
Street Setback (Secondary) (feet)		8 min.	6 min. 18 max.	2 min. 12 max.	12 min.	
Side Setback (feet)		8 min.	3 min. Arterial streets: 0	0 min. 24 max.	12 min.	
Rear Setback (feet)		8 min.	3 min.	3 min.	12 min.	
Minimum Frontage Buildout (%)		40	60	80	40	
Setbacks — Accessory Building						
Street Setback (<u>principal</u>)(feet)	Regulations of most restrictive abutting district	20 min. + principal building setback	20 min. + principal building setback	40 max. from rear property line	20 min. + principal building setback	Established during district adoption
<u>Street Setback (Secondary) (feet)</u>	<u>Regulations of most restrictive abutting district</u>	On corner lots accessory buildings and structures shall be set back from the street side lot line not less than the minimum principal secondary street setback requirement. Where the rear lot line of the corner lot abuts the side lot line of an adjacent lot, accessory buildings and structures shall be set back from the side street lot line not less than the front setback of any building situated on the adjacent lot and not less than the minimum principal secondary street setback requirement, whichever is greater.				

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

Side Setback (feet)	Regulations of most restrictive abutting district	6	3	3	6
Rear Setback (feet)	Regulations of most restrictive abutting district	6	3	3	6

- B. Contextual street-yard building setbacks. If a primary structure exists on any immediately adjacent parcel, not including parcels separated by a public right-of-way, the street-yard setback for the subject parcel for the principal building shall be the average of the minimum street-yard setback of the subject zone and the setback of the adjacent primary structure(s). In no circumstance shall the street-yard setback exceed the maximum street-yard setback of the subject zone.

C. Accessory buildings.

(1) Accessory buildings must be separated by a minimum distance of 10 feet from the principal building on the lot, and may be reduced with fire-rated construction.

(2) Accessory building setbacks from the rear lot shall not be less than 8 feet when adjacent to an alley that have an opening directly on an alley.

- D. ~~C.~~ Setback encroachments. Open or enclosed fire escapes, terraces, and unenclosed stairways may project into a side or rear yard not more than four feet; provided that they are not closer than three feet to any lot line.

- E. ~~D.~~ Height regulations. When multiple ratios apply to a property, the City shall limit the building height to the lowest height at any given point on the property for the given ratios. All buildings may increase in height by one foot for every foot into the property perpendicular to the property line. The City limits building heights to the maximum principal building height listed in Table II-3 based on the right-of-way type adjacent to the subject property. When the subject property abuts multiple different right-of-way types, the greatest maximum principal building height shall control.

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

Table II-3: Height Regulations				
Right-of-Way Type	Principal Building Height	Accessory Building Height	Right-of-Way Width	Example Maximum Principal Building Height (feet)
Major Arterial	1	0.3	1	120-foot height allowance at property line; 120-foot right-of-way
Minor Arterial	0.7	0.3	1	84-foot height allowance at property line; 120-foot right-of-way
Collector	0.5	0.25	1	40-foot height allowance at property line; 80-foot right-of-way
Local	0.33	0.15	1	22-foot height allowance at property line; 66-foot right-of-way
Alleys, pedestrian connections, and multi-use pathways	1	1	1	20-foot height allowance at property line; 20-foot right-of-way ²⁴

(1) Accessory building height limitations. No property owner may build an accessory building that exceeds the height of the existing principal building taller than the primary structure, or 24 feet, or the accessory building height ratio contained within Table II-3: Height Regulations, whichever is less. A detached accessory structures may exceed the measured height of the principal structure when at least one of the following applies:

(a) The accessory structure is located at a lower elevation, provided the highest roof point of the accessory structure does not exceed the highest roof point of the principal building as viewed from the public right-of-way; or

(b) The accessory structure does not contain more than two stories, the eave height does not exceed 17 feet, and the roof pitch matches the principal building.

(2) Contextual building heights. If a ~~primary structure exists~~ principal building abuts the subject property on any immediately adjacent ~~parcel~~ property, not including ~~parcels~~ properties separated by a ~~public~~ right-of-way, the maximum principal building height shall not exceed the ~~following~~ multipliers within Table II-4.

(3) Calculating building heights. Suppose a subject property lies along a minor arterial street, and a principal building exists on an adjacent property within a Z-4 district that is 24 feet tall.

(a) Example 1: Basic Calculation. The maximum principal building height for the subject property is 96 feet (24 x 4.0 = 96 feet), because the Z-4 contextual building height multiplier from Table II-4 reduces the subject property's allowable principal building height to a value less than the Right-of-Way Type limits from Table II-3.

(b) Example 2: Different Adjacent Zone. If the same 24-foot principal building exists on an adjacent property within a Z-2 district, the maximum principal building height for the subject property is 36 feet (24 x 1.5 = 36 feet), because the Z-2 contextual building height multiplier from Table II-4

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

reduces the subject property's allowable principal building height to a value less than the Right-of-Way Type limits from Table II-3.
(c) Example 3: Different Right-of-Way Type. If the subject property lies along a collector street, the maximum principal building height is 80 feet, because the Right-of-Way Type from Table II-3 limits the maximum principal building height to a value less than the Contextual Building Height Limit in Table II-4.

Table II-4: Contextual Building Height Limits	
Adjacent Zone	Increase in Stories Above Structure on Adjacent Parcel
Z-1	No limit
Z-2	1.50x
Z-3	2.0x
Z-4	4.0x
M-1	No limit

(4) (3) Measuring Height. The City measures height as the vertical distance from the average ground elevation along the structure's base to the highest point of the subject structure. The average ground elevation is the midpoint between the highest and lowest ground elevations along the exterior building wall.

Section 15.21. Signs of Article IV Site Design Standards

- C. Exemptions. The City exempts the following signs from the regulations contained in this chapter.
- (8) Flags, up to a maximum of three per lot or parcel. The length of the hoist side of any flag shall not exceed 20% of the vertical height of the pole. Maximum height 35 feet. Property owners must fly U.S. flags in accordance with protocol established by the U.S. Congress. The City considers any flag that does not meet these requirements a sign subject to the requirements of this chapter.
- H. Signs permitted with a permit.

Table IV-1 Sign Regulations				
Sign Type	Number Allowed	Sign Area (Maximum)	Sign Height (Maximum, feet)	Where Allowed
Ground	1 per street yard	1 square foot per linear foot of lot	10	Street yard

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

		frontage		
Wall	No maximum so long as the total square feet of signage per <u>storefront</u> facade does not exceed 1 square foot per linear foot of <u>tenant</u> building facade		N/A	Street-facing building facade
Projecting	1 per business	12 square feet	N/A	Within 6 feet of entrance
Wayfinding	No limit	6 square feet	5	No limit
Sandwich Board	1 per building, business, or tenant space as applicable	12 square feet	4	Street yard or public sidewalk within 10 feet of business entrance

J. Sign location measurements.

- (1) Signable area. The signable area of a building is designated as the area of the facade of the building up to the roof line which is free of windows and doors or major architectural detail on which signs may be displayed. ~~In computing signable area, any facade which faces or abuts a public right of way may be utilized. Calculations may include parapet walls, but shall exclude door and window openings.~~

Section 15.22 Parking and loading areas of Article IV Site Design Standards

§15.22G

Use of motor vehicle parking areas. Property owners may only park licensed, operable motor vehicles in outdoor off-street motor vehicle parking spaces with the exception of typical vehicle maintenance, not to exceed 24 hours. They may not work on any motor in any outdoor motor vehicle parking space. They may not use any motor vehicle parking spaces for storing, displaying, or selling any goods or materials unless specifically approved by the Zoning Administrator.

(6) Driveways

- (a) Driveway width. The maximum width of driveways at the point of connection to the street right of way is 24 feet for two-way travel and 12 feet for one-way travel. A three-foot taper is permitted to either side of the driveway approach in the public way.
- i. For R-1 uses, driveways shall not exceed 24 feet in width at the property line.
- ii. Driveways shall be the width of the garage, as measured from the garage door(s)

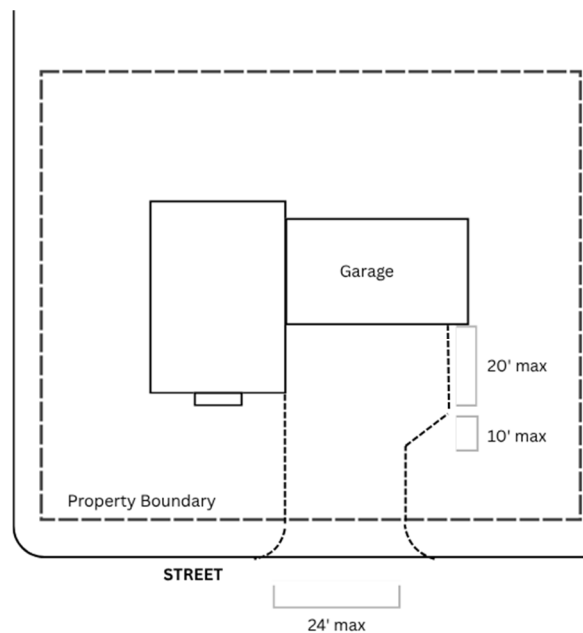
Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

plus an additional three (3) feet on either side of the garage door(s).

- iii. Driveways may exceed 24 feet in width only for the minimum distance necessary to align with the width of the garage door opening(s), approved by the City Engineer.
 - A. The maximum length of a driveway width extension shall be 20 feet from the garage doors.
 - B. The driveway width extension shall taper, within 10 feet, back to the maximum driveway width.

Figure IV-1. Driveway Extension



(7) Improved parking spaces.

(a) In addition to an allowable driveway of one- or two-family dwellings:

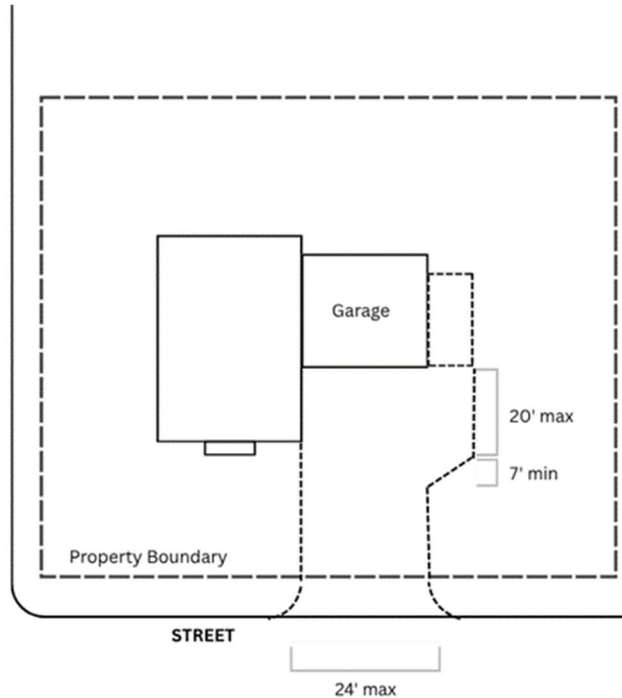
- i. One (1) uncovered parking space is permitted alongside an attached or detached garage and not located between the building and front lot line. For a corner lot, an uncovered parking space located in any yard area that abuts a street requires screening.
- ii. The size of an uncovered parking space alongside a garage shall not be less than eight (8) feet or exceed 12 feet in width and 18 feet in depth.

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

The portion of the parking pad adjacent to the driveway extension shall have a maximum length of 20 feet, as measured from the front façade line of the garage. A minimum seven (7) foot taper shall be included in the 20-foot

Figure IV-2 Improved Parking Pad



Section 15.23 Landscaping and screening of Article IV Site Design Standards

A. Landscaping

(8) Landscape and screening elements.

- (a) Landscaped areas. Property owners must plant 50% of landscaped areas ~~only~~ with the plants listed under Subsection A(8)(m).

[Native Species List. See Appendix 1]

B. Screening

(3) Materials

- (a) Required materials. Property owners may construct screening structures of masonry, stone, metal, wood, or gabions filled with stone material. ~~Additionally, R-uses may use vinyl and composite material or chain-link in rear yards only.~~ The Zoning Administrator may approve the use of alternative materials provided that the materials are equivalent in suitability,

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

strength, and durability.

[1] R-1 uses may use vinyl and composite material. Chain-link material allowed in rear yards only.

[2] R-2 and R-3 uses may use vinyl, composite and chain-link in rear yards only.

[3] [4] Masonry. Property owners must construct masonry walls of attractive, high-quality, durable-finish materials such as brick, cast stone, decorative block, or stucco over standard concrete masonry blocks. The color, texture, and type of materials used on masonry walls must match or complement the materials used on the principal building on the subject lot.

[4] [2] Ornamental metal fence. Ornamental metal fences must have decorative metal pickets at least 0.75 inches wide spaced no farther apart than an average six inches on center. Ornamental metal fences may include masonry, stone, or wood piers.

[5] [3] Opaque fences. Opaque fences shall completely obscure the view of the screened area. Property owners may construct an opaque fence of masonry, stone, metal, wood, vinyl or composite material, gabions filled with stone material, or a combination of such materials. The City does not consider chain-link fences with slats or mesh screening opaque fences.

Section 15.26. Construction site erosion and sediment control of Article IV Site Design Standards. Repeal the entire section

Section 15.27. Post-construction stormwater management of Article IV Site Design Standards.. Repeal the entire section

Section 15.28 Terms defined, Article V Definitions

A. Terms beginning with "A."

~~ADEQUATE SOD or SELF-SUSTAINING VEGETATIVE COVER—Maintenance of sufficient vegetation types and densities such that the physical integrity of the streambank or lakeshore is preserved. Self-sustaining vegetative cover includes grasses, forbs, sedges and duff layers of fallen leaves and woody debris.~~

~~ADMINISTERING AUTHORITY—A governmental employee, or a regional planning commission empowered under § 62.234, Wis. Stats., that is designated by the Common Council to administer this chapter.~~

~~AGRICULTURAL FACILITIES AND PRACTICES—Has the meaning given in § 281.16(1), Wis. Stats.~~

City of South Milwaukee, WI

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

~~ATLAS 14 — The National Oceanic and Atmospheric Administration (NOAA) Atlas 14 Precipitation Frequency Atlas of the United States, Volume 8 (Midwestern States), published in 2013.~~

~~AVERAGE ANNUAL RAINFALL — A typical calendar year of precipitation as determined by the Wisconsin Department of Natural Resources for users of models such as WinSLAMM, P8 or equivalent methodology. The average annual rainfall is chosen from a department publication for the location closest to the municipality.~~

B. Terms beginning with "B."

~~BMP (BEST MANAGEMENT PRACTICE) — Structural or nonstructural measures, practices, techniques or devices employed to avoid or minimize sediment or pollutants carried in runoff to waters of the state.~~

C. Terms beginning with "C."

~~CEASE AND DESIST ORDER — A court issued order to halt land disturbing construction activity that is being conducted without the required permit or in violation of a permit.~~

~~COMBINED SEWER SYSTEM — A system for conveying both sanitary sewage and stormwater runoff.~~

~~CONNECTED IMPERVIOUSNESS — An impervious surface connected to the waters of the state via a separate storm sewer, an impervious flow path, or a minimally pervious flow path.~~

~~CONSTRUCTION SITE — An area upon which one or more land disturbing construction activities occur, including areas that are part of a larger common plan of development or sale where multiple separate and distinct land disturbing construction activities may be taking place at different times on different schedules but under one plan. A long-range planning document that describes separate construction projects, such as a 20-year transportation improvement plan, is not a common plan of development.~~

~~DESIGN STORM — A hypothetical discrete rainstorm characterized by a specific duration, temporal distribution, rainfall intensity, return frequency and total depth of rainfall.~~

~~DIRECT CONDUITS TO GROUNDWATER — Wells, sinkholes, swallets, fractured bedrock at the surface, mine shafts, non-metallic mines, tile inlets discharging to groundwater, quarries, or depressional groundwater recharge areas over shallow fractured bedrock.~~

~~DRAINAGE SYSTEM — One or more artificial ditches, tile drains or similar devices which collect surface runoff or groundwater and convey it to a point of discharge.~~

E. Terms beginning with "E."

~~EFFECTIVE INFILTRATION AREA — The area of the infiltration system that is used to infiltrate runoff and does not include the area used for site access, berms, or pretreatment.~~

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

~~EROSION — The process by which the land's surface is worn away by the action of wind, water, ice, or gravity.~~

~~EROSION AND SEDIMENT CONTROL PLAN — A comprehensive plan developed to address pollution caused by erosion and sedimentation of soil particles or rock fragments during construction.~~

~~EXCEPTIONAL RESOURCE WATERS — Waters listed in § NR 102.11, Wis. Adm. Code.~~

F. Terms beginning with "F."

~~FILTERING LAYER — Soil that has at least a three-foot-deep layer with at least 20% fines; or at least a five-foot-deep layer with at least 10% fines; or an engineered soil with an equivalent level of protection as determined by the regulatory authority for the site.~~

~~FINAL STABILIZATION — That all land-disturbing construction activities at the construction site have been completed and that a uniform perennial vegetative cover has been established with a density of at least 70% of the cover for the unpaved areas and areas not covered by permanent structures or that employ equivalent permanent stabilization measures.~~

~~FINANCIAL GUARANTEE — A performance bond, maintenance bond, surety bond, irrevocable letter of credit, or similar guarantees submitted to the City Engineer by the responsible party to assure that requirements of the ordinance are carried out in compliance with the stormwater management plan.~~

I. Terms beginning with "I."

IMPROVED PARKING AREA -- That portion of a front or side yard which is paved with asphalt, concrete or stone and devoted to a driveway, and that portion of a rear yard which has been improved for parking purposes by paving with stone, asphalt or concrete.

~~INFILTRATION — The entry of precipitation or runoff into or through the soil.~~

~~INFILTRATION SYSTEM — A device or practice such as a basin, trench, rain garden or swale designed specifically to encourage infiltration, but does not include natural infiltration in pervious surfaces such as lawns, redirecting of rooftop downspouts onto lawns or minimal infiltration from practices, such as swales or road-side channels designed for conveyance and pollutant removal only.~~

L. Terms beginning with "L."

~~LAND-DISTURBING CONSTRUCTION ACTIVITY — Any man-made alteration of the land surface resulting in a change in the topography or existing vegetative or non-vegetative soil cover, that may result in runoff and lead to an increase in soil erosion and movement of sediment into waters of the state. Land-disturbing construction activity includes clearing and grubbing, demolition, excavating, pit trench dewatering, filling and grading activities.~~

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

~~LANDOWNER — Any person holding fee title, an easement or other interest in property, which allows the person to undertake cropping, livestock management, land-disturbing construction activity or maintenance of stormwater BMPs on the property.~~

M. Terms beginning with "M."

~~MAXIMUM EXTENT PRACTICABLE — The highest level of performance that is achievable but is not equivalent to a performance standard identified in this chapter as determined in accordance with of this chapter.~~

N. Terms beginning with "N."

~~NRCS MSE3 OR MSE4 DISTRIBUTION — A specific precipitation distribution developed by the United States Department of Agriculture, Natural Resources Conservation Service, using precipitation data from Atlas 14.~~

P. Terms beginning with "P."

~~POLLUTANT — Has the meaning given in § 283.01(13), Wis.~~

~~STATS. POLLUTION — Has the meaning given in § 281.01(10), Wis. Stats.~~

~~PREVENTIVE ACTION LIMIT — Has the meaning given in § NR 140.05(17), Wis. Adm. Code.~~

R. Terms beginning with "R."

~~RUNOFF — Stormwater or precipitation including rain, snow or ice melt or similar water that moves on the land surface via sheet or channelized flow.~~

S. Terms beginning with "S."

~~SEDIMENT — Settleable solid material that is transported by runoff, suspended within runoff or deposited by runoff away from its original location.~~

~~SEPARATE STORM SEWER — A conveyance or system of conveyances including roads with drainage systems, streets, catch basins, curbs, gutters, ditches, constructed channels or storm drains, which meets all of the following criteria:~~

~~a. — Is designed or used for collecting water or conveying runoff.~~

~~b. — Is not part of a combined sewer system.~~

~~c. — Is not part of a publicly owned wastewater treatment works that provides secondary or more stringent treatment.~~

~~d. — Discharges directly or indirectly to waters of the state.~~

~~STORMWATER MANAGEMENT PLAN — A comprehensive plan designed to reduce the discharge of pollutants from stormwater, after the site has undergone final stabilization, following completion of the construction activity.~~

Exhibit A Zoning Amendment Markup

Amendments to Chapter 15 Zoning of the South Milwaukee, Wisconsin Municipal Code

~~STORMWATER MANAGEMENT SYSTEM PLAN — Is a comprehensive plan designed to reduce the discharge of runoff and pollutants from hydrologic units on a regional or municipal scale.~~

T. Terms beginning with "T."

~~TOP OF THE CHANNEL — An edge, or point on the landscape landward from the ordinary high water mark of a surface water of the state, where the slope of the land begins to be less than 12% continually for at least 50 feet. If the slope of the land is 12% or less continually for the initial 50 feet landward from the ordinary high water mark, the top of the channel is the ordinary high water mark.~~

~~TOTAL MAXIMUM DAILY LOAD or TMDL — The amount of pollutants, specified as a function of one or more water quality parameters, that can be discharged per day into a water quality limited segment and still ensure attainment of the applicable water quality standard.~~

~~TP 40 — Technical Paper No. 40, Rainfall Frequency Atlas of the United States, published in 1961.~~

~~TR 55 — The United States Department of Agriculture, Natural Resources Conservation Service (previously Soil Conservation Service), Urban Hydrology for Small Watersheds, Second Edition, Technical Release 55, June 1986, which is incorporated by reference for this chapter.~~

~~TSS — Total suspended solids.~~

~~TYPE II DISTRIBUTION — A rainfall type curve as established in the "United States Department of Agriculture, Soil Conservation Service, Technical Paper 149, published in 1973."~~

V. Terms beginning with "V."

~~VEHICULAR USE AREA — A vehicular use area is an outdoor area on a lot used for the storage and operation of motor vehicles, including parking lots, vehicle storage areas, vehicle display areas, loading areas, driveways, and drive-through lanes. Includes those portions of Lake Michigan and~~

Exhibit B Ch 23 Public Peace & Safety Markup

Amendments to Section 23.15 Vehicular parking and junk automobiles

Section 23-15 Vehicular parking and junk automobiles

F. Prohibited parking areas.

(1) It shall be unlawful to park any vehicle, trailer, or equipment, as defined herein on any lawn or grass, or other yard that is not an improved parking area as defined in Subsection A(3) on any residentially zoned property or property however zoned if it is used for residential purposes.

(a) Vehicles or equipment shall include house trailers (campers); utility trailers, mobile homes, motor vehicles, trucks, passenger vehicles, motor homes, motorcycles, other trailers, boats, construction equipment, machinery, or any parts of the above.

(2) Limits of improved parking areas shall be as defined ~~herein or~~ under Chapter 15 (Zoning Code).

~~(a) Front, side, and rear yards of the primary structure shall not be used as an improved parking area except for a driveway extending from the public street or alley to a garage. The front yard of the primary dwelling shall be lawn or landscaping area, except for walkways connecting from sidewalks, roads or driveways to front of dwellings.~~

~~(b) The total area of yard used for parking and driveway purposes shall not exceed 40 [%] of the larger of the required minimum or actual front or rear yard setback area, and shall not exceed 24 feet in width.~~

~~(c) Driveways and improved parking areas shall be a minimum of two feet from a side (or rear) property line, except as noted herein.~~

~~(d)~~

~~[1] Where a property has frontage and access to a public alley, a driveway or improved parking shall only be from the alley to the rear yard.~~

~~[2] On a corner lot, improved parking shall only be from one side.~~

~~(3) Exceptions.~~

~~(a) Single family or two family dwellings that have side entry garages in front of a dwelling may exceed coverage by administrative review.~~

~~(b) The City may approve an increase in front yard driveway coverage by administrative review when the increase would meet the intent of the code or where ordinance standards cannot be reasonably applied to the lot or create an unreasonable hardship based on the characteristics of the premises and/or land. A hardship cannot be based on the number or type of vehicles owned by the occupants or owners. As part of such review, the owner or applicant may be required to add screening around the driveway to help hide the parking area and vehicles from view of adjacent properties or from the street. The property owner or applicant may use a privacy fence, landscaping, or other means to meet the requirements.~~

~~(c) Properties that exceed the maximum coverage as of the date of this ordinance shall not expand the improved parking area. Property owners exceeding the maximum shall~~

Exhibit B Ch 23 Public Peace & Safety Markup

Amendments to Section 23.15 Vehicular parking and junk automobiles

~~not be required to remove permanently paved improved areas and may use such areas for parking.~~

(~~34~~) Responsibility. The owner or lessee of any vehicle or equipment defined under Subsection F(1)(a) and the owner, agent or tenant of any premises within any residential zoning district upon which such vehicle or equipment are parked, stored or maintained, shall be individually responsible for complying with the provisions of § 23.15F.

(~~45~~) Penalties and enforcement.

(a) Any person, firm or corporation who violates the provisions of § 23.15F(1) shall, upon written notice from the Police Department, remove the vehicle or equipment within 10 days of the date of the notice or shall pay a forfeiture of not less than \$10 nor more than \$200 for each offense, and each day that such violation continues shall be considered as a separate offense.

~~(b) The City engineer and/or the Building Inspector shall be primarily responsible for reviewing compliance with § 23.15F(2) and enforcement of provisions as it pertains to limits of improved parking for new construction or expansion of improved parking for previously developed properties.~~

[Added 12-2-2008 by Ord. No. 1983]

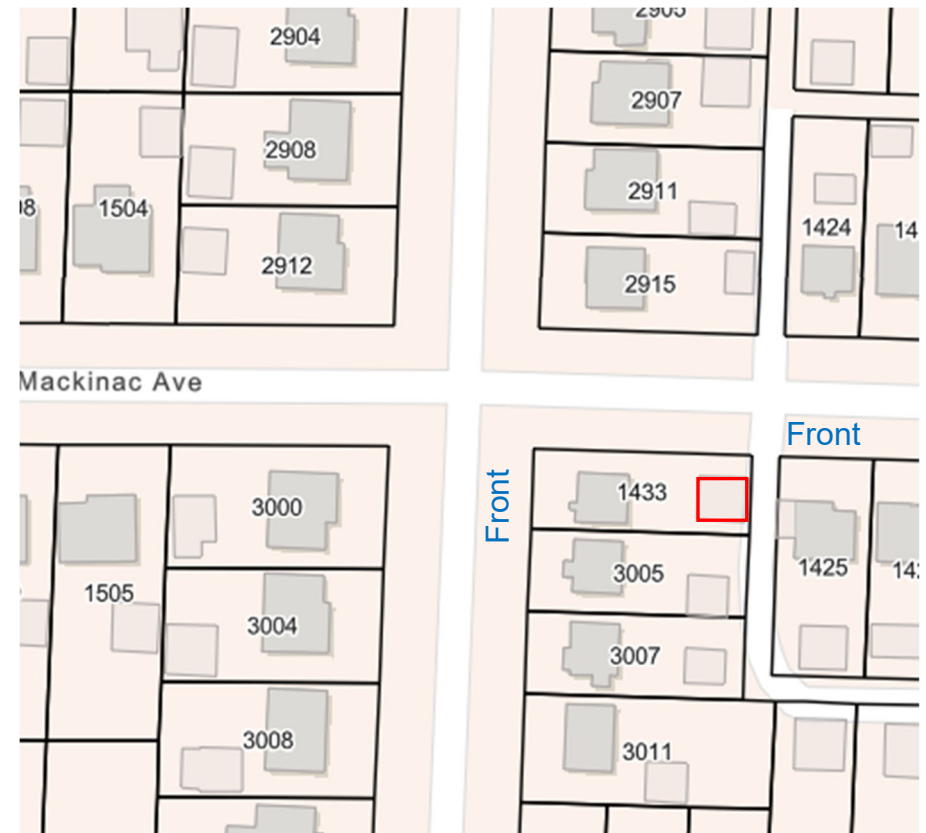
CORNER LOTS: ACCESSORY STRUCTURE SETBACK REVIEW

Amended code: On corner lots accessory buildings and structures shall be set back from the street side lot line not less than the minimum principal secondary street setback requirement. Where the rear lot line of the corner lot abuts the side lot line of an adjacent lot, accessory buildings and structures shall be set back from the side street lot line not less than the front setback of any building situated on the adjacent lot and not less than the minimum principal secondary street setback requirement, whichever is greater.

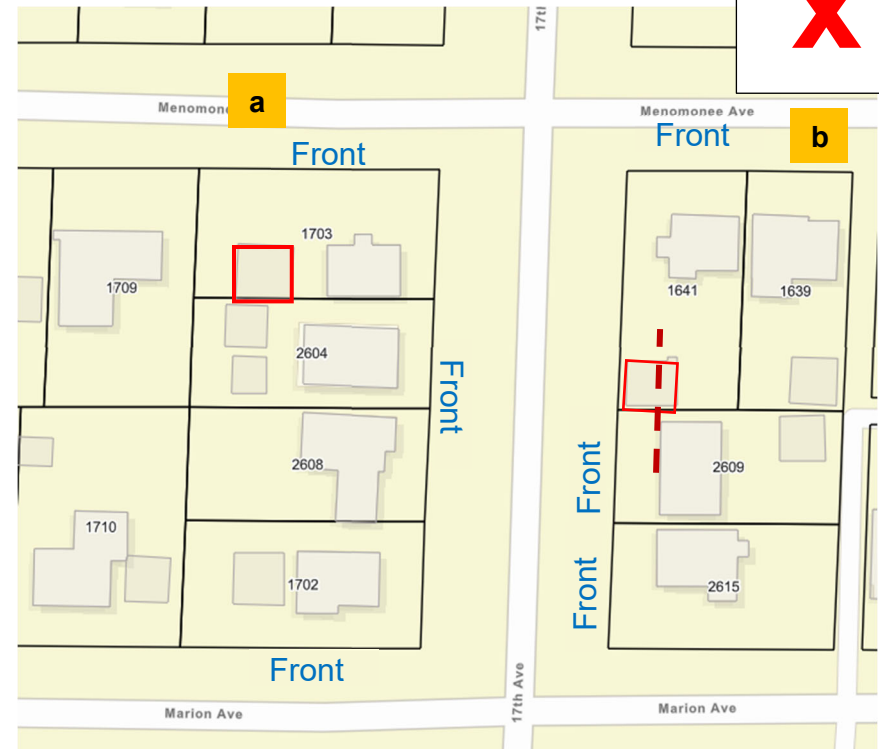
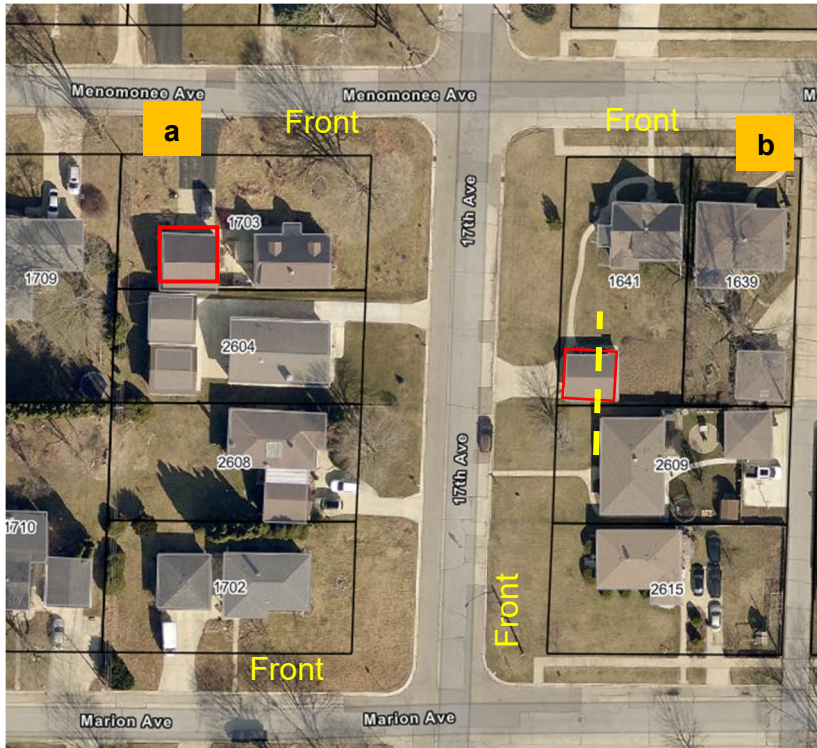


1. CORNER PARCEL: Rear yard to Front yard w/ alley

Example shows corner property garage in front of adjacent property across rear alley. Code allows because separated by alley.



2. CORNER PARCEL: Rear yard to side yard example



- a.** The detached garage does not meet front yard accessory structure setback. Can rebuild as-is if fire/natural disaster, or requires Variance.
- b.** The detached garage does not meet proposed street side yard setbacks. New code requires min principal side setback or at or behind the adjacent buildings if it's abutting the side property line.

3. CORNER PARCEL: Rear yard to rear yard example



Both corner properties rear yards abut adjacent properties rear yards.

a. The detached garage is in front of the adjacent property house, which meets code, but it is less than the minimum code side setback. EG Z-3 6-ft

b. The detached garage appears in front of the adjacent house. It meets code because meets min street setback only and it abuts the rear yard of the adjacent property.



Ordinance No. XXXX

An Ordinance to Impose Zoning Limitations on New Tax Exempt Uses within Open Tax Incremental Financing Districts

Whereas the City of South Milwaukee is an urban community incorporated in 1897 in which numerous uses have been permitted or not effectively regulated by the zoning code;

Whereas the South Milwaukee Common Council recognized that the creation of new tax exempt uses within open tax incremental financing districts could cause financial harm to both the subject district and the city as a whole without special consideration;

Whereas it is in the community's best interest to promote the execution of duly noticed, debated, and adopted tax incremental district project plans as intended;

Whereas in order to protect the health and welfare of the City, a limitation on new tax exempt uses in tax incremental districts is appropriate;

Whereas the Plan Commission recommended this ordinance by majority vote at their regular meeting on July 28, 2026;

Now, therefore, at a regular meeting of the Common Council of the City of South Milwaukee, held on August 4, 2026, a quorum of the members of the Common Council being present and a majority voting in favor thereof, the Common Council does hereby ordain as follows:

1. The City amends Section 15.18 of the Municipal code of Ordinances to read as follows (additions underlined):

§ 15.18 INTERPRETATION OF USE TABLE.

- A. Permitted uses. The City permits uses identified with "P" as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in its definition.
- B. Frontage uses. The City permits uses identified with ">" as-of-right on parcels with frontage along arterial streets in the subject zoning district, subject to compliance with any supplemental regulations identified in its definition.
- C. Prohibited uses. The City prohibits uses identified with "-" and uses not listed in the Use Table and that the Zoning Administrator does not interpret to fall within any defined use category or subcategory.
- D. References. The final column of the Use Table includes a cross-reference to the use definition and any applicable supplemental use regulations that apply to that use. The City requires compliance with supplemental use regulations.
- E. Use classification. The Zoning Administrator may assign proposed uses to the appropriate category based on the provisions of this division. If the ordinances do not clearly define the proposed use, they may determine the most similar use category based on the actual or projected characteristics of the proposed use. When determining use categories, the Zoning Administrator must consider:
 - (1) The proposed use's designation under the International Building Code;
 - (2) The types of activities that typically occur in conjunction with the use;
 - (3) The proposed use's equipment and processes;
 - (4) The existence, number, and frequency of residents, customers, or employees;
 - (5) Parking demands; and

(6) Other factors the Zoning Administrator deems relevant.

- F. Tax Exempt Uses. To protect all City tax payers, reduce the likelihood of decrement, and maintain the ability to execute adopted project plans, the City prohibits the issuance of Certificates of Occupancy for uses which render a property tax exempt in open tax incremental financing districts unless approved by two-thirds of the members of the council, excluding the Mayor.

(1) This limitation applies only to applications submitted after the establishment of any tax incremental financing district. It does not affect existing uses established before the Joint Review Board establishes any district or for uses which § 15.20 applies.

(2) This prohibition expires for any subject property when it no longer lies within an open tax incremental financing district.

2. The City repeals all ordinances or parts of ordinances conflicting with the provisions of this ordinance to the extent of such conflict.

3. This ordinance shall take effect on and after its passage and publication.

Passed and Adopted by the Common Council of the City of South Milwaukee on August 4, 2026.

Mayor Brett Briesemeister

Attest:

Clerk Steven Braatz, Jr.

Adopted: August 4, 2026

Approved: August 5, 2026



2026 ECONOMIC DEVELOPMENT REPORT QUARTER 1-2

The City of South Milwaukee advances economic development by implementing zoning and planning updates, encouraging redevelopment, supporting small businesses, revitalizing Downtown, expanding housing diversity and density, leveraging Tax Incremental Financing, and responsibly managing Bucyrus Foundation funds.

PLAN COMMISSION STATISTICS

Activity	2025	2026
• Total Meetings	6	3
• Conditional Use Permit/Amend	1	1
• Rezone/PDD	1	0
• Development Project meetings	3	2
• Bucyrus Grants considered	5	2
• Zoning Code meetings	6	2
• Comprehensive plan	1	0

ZONING CODE

Zoning Code Amendments
The zoning chapter was recreated and adopted in 2025. Staff introduced changes for several sections that would benefit from clarification to simplify administration and improve code usability. The plan commission discussed proposed changes at several meetings this year.

IMPACT OF 2025 NEW ZONING CODE

ZONING New architectural standards requiring accessory structures built of quality materials and to match principal structure

Example new accessory structure

Denied original design



metal shed

Approved revised design, built 2026



Red LP siding that compliments the red/brown brick of the triplex facade. Both structures have white trim.

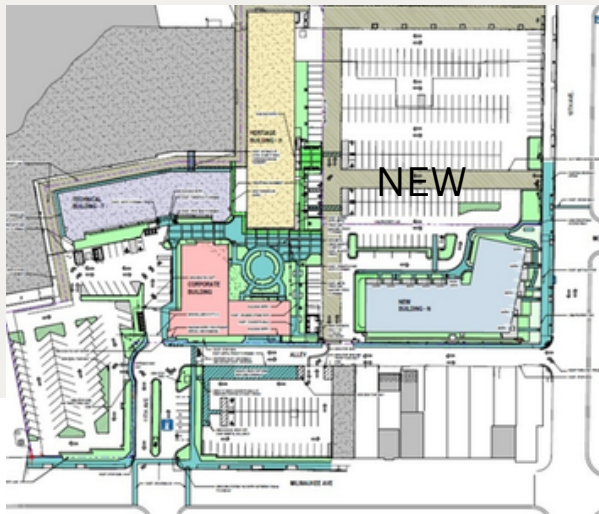
ECONOMIC DEVELOPMENT ACTIVITY

The city has met with various developers interested in investing in South Milwaukee for small infill sites and larger future redevelopment opportunities.

- 1919 12th CITY PROPERTY CONVEYED. The Bucyrus Club commercial property was purchased by the business operator in spring 2026. The City had acquired the historic building to preserve a key downtown landmark, ensure its restoration, and work collaboratively with the business operator to support its successful redevelopment.
- 2318 10th VACANT CITY PROPERTY. The development proposal for a mixed-use building is no longer active. Staff is evaluating renewed interest in the City-owned property and will return to the Plan Commission with recommendations for next steps.
- 1715 10th VACANT GAS STATION. The gas station, vacant since 2018, is nearing completion with only canopy lighting and electrical work remaining, meeting Conditional Use Permit requirements from 2024.

- 1208-1210 MILWAUKEE. One of two distressed buildings was razed in 2025. An engineering report was completed January 2026, needed before further demolition. This is a potential redevelopment site with the adjacent city-owned vacant water tower site. The city is working with the property owners, Milwaukee County, and the development community for a future redevelopment.
- FORMER PICK N SAVE IN GRANT PARK PLAZA. The city continues to work with the property owners, supporting a grocery operation.
- 1701 10th AVE VACANT CITY PROPERTY. The narrow parcel was conveyed to the adjacent property owner Motorplex LLC, for future expansion of indoor vehicular storage.

BUCYRUS CAMPUS REDEVELOPMENT



1100 Milwaukee Avenue

Final civil plans submitted to city in June.

- 4 buildings on 4 acres
- 132 apartment homes in 3 buildings.
- Private elementary school opened October 2025 in Corporate building
- Commercial use on first floor of northern Heritage building

Project Details

Budget: \$52 ml

Base Value: \$1.1 ml

Value after Completion: \$10.37 ml

Incentive Requested : \$1.5 ml

SOUTH SHORE LANDING



100 15th Avenue

Renovations are underway, with majority of rough inspections completed. The property was rezoned to PDD February 2023. The project converts a long-vacant medical office to 20 market rate apartments.

Project Details

Budget: \$3.2 ml

Base Value: \$297,100

Value after Completion: \$4 ml

Incentive Requested: \$100,000

315 MARION SITE

Developer remains engaged with owners of 315 Marion Ave, former 30-acre Everbrite site

A developer presented a concept to develop the site at 5th & Marion Avenue late 2025 to the plan commission, for a phased development, providing one- and two-family homes and varying densities of multifamily homes.

BUSINESS PROGRAMS, RESOURCES & SUPPORT

S.M. ALL BUSINESS RETENTION & EXPANSION PROGRAM

The Business Retention & Expansion Program recognizes the City's businesses, connects them with resources, generates data to influence policy making, and works to ensure that South Milwaukee businesses stay and grow with the city.

PROCLAMATION
June is Economic
Development Month

2026 Business Milestone Anniversaries

5 Years

Better Together Cafe
Bucyrus Club/Skyline Catering
Dawn Equipment
Steele Solutions
Thirsty's pub

15 Years

Caterpillar
Chanov Autobody
Lopez Autobody
Mikey V's Auto
Toppers Pizza

25 Years

Aurora Pharmacy

30 Years

Slick Willy's Bar & Grill

35 Years

Public Parking (Motorplex)

45 Years

Studio One Art Glass

75 Years

Parkway Floral

85 Years

Eaton

100 Years

South Milwaukee Arcade

10 Years

Chanov Enterprises
Dealership
Servpro
Taco Stop
Tracker's Pub & Grub

20 Years

Brew City Auto Repair/Towing
Charlies Catering
China Chef
Cousins Subs
Jack's of All Trades

S.M.ALL Business Awards

On June 23, the city presented Studio One Art Glass, Tracker's Pub & Grub, and Taco Stop a \$500 Bucyrus Business Retention Grant, distributed via a random drawing from the 2026 business milestone anniversaries list during June Economic Development Month.

Downtown Business Outreach

On June 30, the Economic Development team met with 8 local businesses as part of its ongoing business retention and outreach efforts, providing support, answering questions, and gathering feedback.

Monthly Business Newsletter Data

Business Interaction Data

QTR 1 -2	2026	QTR 1 -2	2025	2026
• Total Emails Sent	5,255	• Individual Business Contacts	557	462
• June Tot Subscribers	657	• Total Business Outreach	1,102	1,332
		• New Inquiries to Open Business	30	31

RenewTowns Space Race Pitch Contest



The City partnered with UW-Whitewater to implement the award-winning RenewTowns program, which helps revitalize downtowns by filling vacant storefronts through a community-driven business competition. Following community voting and a final judging process, two winners were selected and announced on April 9, 2026. With one year of storefront rent funded by the Bucyrus Foundation, 7Bridges Record Lounge will open at 1003 Milwaukee Avenue and Gnome Restaurant at 1009 Milwaukee Avenue.

April 9th Winner Reveal & Ribbon Cutting



The Bucyrus Foundation Grant Programs offer four grant incentives that supports businesses and downtown and commercial corridor revitalization. The first half of the year two storefront grants were approved and several projects completed and grants distributed.

Bucyrus Business Grants			
Grant Type	Total Approved Grants	Total Project Costs	Total Open Grants
• Facade Improvement	0		1
• Storefront Activation	2	\$32,500	3
• Hanging Blade Sign	0		0
• New Business	0		0

NEW BUSINESSES

Openings

1. La Merceria retail - 1219 Milwaukee

2. Beyond Yoga – 1013 Milwaukee

3. Twelve29 Lounge – 1229 Milwaukee

4. Roots of Radiance – 925 Milwaukee
5. Party On Rentals – 1104 Carroll

6. Reddz Auto – 1204 Minnesota

7. Looking Glass Games – 2703 S. Chicago

8. Premier Pickleball restaurant 305 N. Chicago

9. Daisy Nails - 213 N. Chicago



Storefront Closings Downtown

Three storefronts closed the first half of the year. Omen’s two retail stores at 1310 Milwaukee and the Chi Shed boutique at 925 Milwaukee.

DOWNTOWN COMMERCIAL STOREFRONT VACANCIES

The City continues its outreach efforts with landlords to encourage private investment and the activation of vacant commercial spaces.

DOWNTOWN VACANT STOREFRONTS

For Lease	5
Not For Lease	8
Pending Storefront Businesses	7

**Data excludes industrial, strip malls and non-storefront commercial spaces*

Vacant Building Registration

Commercial storefront landlords are required to register their space annually if they choose not to lease. Properties that are for sale, have active building permits to improve the space, or have a pending business, are exempt from registering.